

~~Participant/Case info review zone~~

Name

Address

City, State, Zip

Phone

Email

Check your email. You will receive information and documents at this email address.

In the [] District [] Justice Court of Utah

_____ Judicial District _____ County

Court Address _____

In Re:

Petitioner

**Order on Petition to Expunge
Records
(Cannabis Conviction)**

Case Number

Judge

The matter before the court is a Petition to Expunge Records. This matter is being resolved by:

- [] The pleadings and other papers of the parties, or
- [] A hearing held on _____ (date), notice of which was served on all parties and at which the court considered the pleadings and evidence presented by the parties.

Having considered the documents filed with the court, the evidence, and the arguments, and now being fully informed,

The court finds by clear and convincing evidence:

Utah Code 77-40a-306(1)(d)

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1. The petition is sufficient.

2. The statutory requirements have been met.

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3. At the time of petitioner's arrest or citation leading to the conviction, they had a qualifying condition which would have allowed them to use medical cannabis to treat symptoms. (Utah Code 26B-4-203).

4. At the time of petitioner's arrest or citation leading to the conviction, the cannabis in their possession was in a form and amount to medicinally treat their condition. (Utah Code 26B-4-201(16) and (32)).

5. Expunging the petitioner's records will not harm the public interest.

The court concludes:

6. The records of petitioner's arrest, investigation, detention, and conviction relating to court case number noted above should be expunged.

The court orders:

- The records of petitioner's arrest, investigation, detention, and conviction relating to court case number noted above will be expunged. Petitioner may deliver a copy of this order to any government agency or official that may have such records.
- The Bureau of Criminal Identification must notify all criminal justice agencies affected by this order.
- The clerk of the court must expunge all related court records as provided by Rule 4-205.
- Any other government agency or official receiving this order must expunge related records as provided by Utah Code, Title 77, Chapter 40a, Part 4.
- Any government agency or official receiving this order may not divulge information identifying the petitioner.
- Any government agency or official receiving this order must respond to any inquiry as though the arrest or conviction did not occur.

Judge's signature may instead appear at the top of the first page of this document.

Date

signature/date review zone

Signature ►

Judge

participant/case info review zone

Certificate of Service

I certify that I filed with the court and am serving a copy of this Order on Petition to Expunge Records – Cannabis Conviction on the following people.

Person's Name	Service Method	Service Address	Service Date
(Prosecuting agency)	☐ Mail ☐ Hand Delivery ☐ E-filed/MyCase ☐ Email ☐ Left at business (With person in charge or in receptacle for deliveries.) ☐ Left at home (With person of suitable age and discretion residing there.)		

Signature ►

Date

Printed Name

signature/date review zone